

Shashi Devi v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 26 April 2011 · Writ-C No. 24085 of 2011 · **Writ disposed; grievance relegated to Clause 7.10 with timed decision.**

HEADNOTE

Where a connection has been disconnected for unpaid dues, the consumer is to seek hearing and disposal under Clause 7.10 of the U.P. Electricity Supply Code 2005. If the grievance is found genuine and the consumer deposits the sum payable, reconnection may be directed within 72 hours. The writ was disposed of at admission without deciding the bill.

FACTUAL SUMMARY

The petitioner, Shashi Devi, approached the Allahabad High Court after her solitary electricity connection was disconnected on account of non-payment of dues she had earlier disputed. She was willing to pay the amount sent by way of the earlier bill in order to obtain reconnection. Counsel appearing for the Power Corporation contended that the connection had been disconnected due to non-payment of bills. The Division Bench heard the writ at the admission stage.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

disconnection-billing-grievance-forum

HOLDING

Because supply had been disconnected, the petitioner was entitled to hearing and disposal under Clause 7.10. The grievance was to be made within seven days of the certified copy; the authority was to decide within 15 days; and if the grievance was genuine and she deposited the sum payable, reconnection could be directed within 72 hours. The writ was disposed of at admission without costs. ¶ 1

FLAG Court directed the Regulatory Commission to decide a Clause 7.10 grievance (forum/ombudsman route).

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Where a connection has been disconnected for unpaid dues, the consumer is to seek hearing and disposal under Clause 7.10 of the U.P. Electricity Supply Code 2005. If the grievance is found genuine and the consumer deposits the sum payable, reconnection may be directed within 72 hours.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLED DUES WERE ACTUALLY PAYABLE OR THE DISCONNECTION WAS JUSTIFIED

Left to the Clause 7.10 proceeding; no merits finding on the bill. ¶ 1

NOT DECIDED — WHETHER RECONNECTION SHOULD BE GRANTED

Conditional on the forum finding the grievance genuine and deposit of the sum payable. ¶ 1

